

(Under section 55.—Pakistan Bar Council Appeal Rules)

- (e) Such other cases which the provincial or District Committee may think fit and expedient for extending Free Legal Aid.

[See Gaz. of Pakistan, 1985, Ext. Pt. II, pp. 2299-2300]

THE PAKISTAN BAR COUNCIL APPEAL RULES, 1986

S. R. O. 135 (I)/87 dated the 15th February, 1987.—In exercise of the power conferred by section 55 read with section 13 of the Legal Practitioners and Bar Council Act, 1973 (XXXV of 1973), and all other enabling provisions in this behalf the Pakistan Bar Council hereby makes and notifies the following rules.

- 1.—(i) These Rules may be called the "Pakistan Bar Council Appeal Rules 1986".
- (ii) They shall come into force at once.
2. In these Rules unless there is anything repugnant in the subject and context :—
 - (i) "Chairman" means the Chairman of the Appeal Committee.
 - (ii) "Committee" means an Appeal Committee for the respective province constituted by the Pakistan Bar Council.
 - (iii) "Provincial Bar Council" means a Bar Council of the respective province constituted under the Legal Practitioners and Bar Council Act 1973.
 - (iv) "Executive Committee" means an Executive Committee of a Provincial Bar Council constituted by the provincial Bar Council concerned.
 - (v) The terms, words and phrases not defined herein above shall wherever the context so permits have the same meanings as is assigned to them under the Legal Practitioners and Bar Councils Act, 1973 (XXXV of 1973).
3. Constitution of Appeal Committees.—(i) The Pakistan Bar Council shall constitute for each province one or more Appeal Committees from amongst its members consisting of not less than three members and not more than ~~five~~ ^{seven} members.
- (ii) The term of every Committee shall be the same as that of the Pakistan Bar Council itself unless the Bar Council when constituting the Committee provides otherwise.
- (iii) The Pakistan Bar Council shall elect a Chairman of each Committee from amongst members of each Committee constituted by it.
- (iv) The quorum for the meeting of the committee shall be one half of the total number of members of the committee.

Subs by SRO 946(I)/95 dt 20/9/85

(Under section 55.—Pakistan Bar Council Appeal Rules)

4. Manner of Filing Appeals.—(i) An appeal against an order or decision of provincial Bar Council or an Executive Committee of a Provincial Bar Council shall be filed with the Chairman of the respective committee either personally through recognised agent or through registered post.

(ii) Every Memorandum of Appeal shall be accompanied by a certified copy of the order or decision appealed against. If the certified copy of the order or decision appealed against is not made available to the appellant he shall furnish affidavit duly sworn by him in this behalf.

(iii) Every such appeal shall be accompanied by a deposit receipt of Rs[200/1000] to be deposited in the collection account of the Pakistan Bar Council.

(iv) The appellant shall submit along with his memorandum of appeal all the documents he wishes to produce in support of his appeal along with affidavits of witnesses if any.

[of receipt of an appeal] 2/7

5. Functions of the Appeal Committee.—(i) The Appeal shall normally be heard before the Committee within [fifteen] days for admission of the appeal and grant of interim relief if prayed for.

Provided that the Chairman may in appropriate cases grant the interim relief and his order shall be placed before the Committee for approval in its next meeting.

(ii) For the admission of Appeal and grant of interim relief it shall not be necessary to call a meeting of the Committee and it will be sufficient if the memo of appeal and application for grant of interim relief is circulated amongst the members of the Committee.

Every order of decision of the Committee shall be taken by majority.

(iii) The Appeal Committee shall hear the appeal, examine the record of case, and record such evidence which it may deem necessary after providing opportunity of hearing to the parties. It shall submit its report to the Pakistan Council within two months with its recommendations.

6. Disposal of Appeal by the Pakistan Bar Council.—(i) The report of an appeal Committee shall be laid before the Pakistan Bar Council in its next meeting for decision.

(ii) The decision of the Pakistan Bar Council shall be communicated to the parties.

[See Gaz. of P. 1987, Ext., Pt. II pp. 189-191]

[Subs. and added by S.R.O. 608 (I)/87, dated the 25th July, 1987, w.e.f. 30-6-1987, see Gaz. P., 1987, Ext. Pt. II, pp 1271-72]

2 Ins + subs + omitted by SRO 229(I)/90 dt 28-5-90
3. Subs by SRO 536(I)/96, dt 25-5-96